

desirous that capital money arising under the Act, shall be applied in or towards payment for an improvement authorised by the Act (*a*), he may submit for approval to the trustees of the settlement, or to the Court as the case may require, a scheme for the execution of the improvement showing the proposed expenditure thereon; and by subsect. (2), where the capital money to be expended is in the hands of trustees, then, after a scheme is approved by them, the trustees may apply that money in or towards payment for the whole or part of any work or operation comprised in the improvement, on —

(A). A certificate of the land commissioners certifying that the work or operation, or some specified part thereof has been properly executed, and what amount is properly payable by the trustees in respect thereof, which certificate is to be conclusive in favour of the trustees, as an authority and discharge for any payment made by them in pursuance thereof; or on

(B). A like certificate of a competent engineer or able practical surveyor nominated by the trustees and approved by the commissioners, or by the Court, which certificate shall be conclusive as aforesaid; or on

(C). An order of the Court directing or authorising the trustees to so apply a specified portion of the capital money.

16. Capital money under the Act.— We may here observe that under the term “capital money arising under the Act,” are comprised, (1). Monies received upon any sale or enfranchisement, or for equality of exchange or partition; (2). Fines received on the grant of leases under any power conferred by the Act of 1882 (*b*); (3). The proportion of rent under mining leases to be set aside under sect. 11 of the Act of 1882; (4). Money raised on mortgage of the settled

(20.) Reconstruction, enlargement, or improvement of any of those works.

(*a*) This section is not retrospective and does not apply to improvements effected before the passing of the Act. *Re Knatchbull's Settled*

Estate, 27 Ch. D. 349; affirmed 29 Ch. Div. 588.

(*b*) The Settled Land Act, 1882, omitted to provide that these fines should be capital money under the Act, but the omission has been supplied by The Settled Land Act, 1884, s. 4.